



Terms and Conditions

Quotations and Order Acceptance

All quotations are subject to product availability, supplier confirmation, freight conditions, market fluctuations, tariff changes, and prior sale. Prices, lead times, and availability are not guaranteed until confirmed in writing by Makrine LLC. Makrine LLC reserves the right to reject, modify, or cancel any order prior to written order confirmation.

Delivery and return

1. Delivery terms

Delivery dates are estimates only and are not guaranteed unless expressly confirmed in writing by Makrine LLC. Makrine LLC shall not be liable for delays caused by supplier issues, transportation delays, Force Majeure events, customer scheduling delays, or other circumstances beyond its reasonable control.

2. Local Delivery

For local deliveries arranged or performed by Makrine LLC, delivery shall be deemed completed when the products are delivered to Buyer's designated location and acknowledged by Buyer, Buyer's employee, agent, representative, warehouse personnel, vessel personnel, or any person reasonably appearing to have authority to receive the products.

3. Customer Pickup

For customer pickup orders, delivery and transfer of risk shall occur once the products are made available at Makrine LLC's warehouse or designated pickup location. Buyer is responsible for loading, transportation, permits, and compliance after pickup unless otherwise agreed in writing.

4. Title and Risk of Loss

Title and risk of loss shall pass to Buyer upon the earliest of:

- (a) delivery to Buyer's designated location;
- (b) signed receipt or delivery confirmation;
- (c) tender of the products to a third-party carrier; or
- (d) customer pickup availability.

5. Shortages or Damage Claims

Buyer shall inspect all products immediately upon receipt. Any claim for shortage, visible damage, incorrect item, or nonconformity must be reported in writing within five (5) business days of receipt, together with supporting information or photos. Failure to provide timely notice shall constitute acceptance of the products and waiver of such claim. Any use, resale, installation, transfer, or retention of the products shall also constitute acceptance.

6. Buyer Delay or Refusal

If Buyer delays, refuses, or fails to accept delivery or pickup, Makrine LLC may deem delivery completed for billing purposes and may charge reasonable storage, handling, redelivery, administrative, or related costs.

7. Hazardous or Regulated Goods

Buyer is responsible for the proper storage, handling, transportation, installation, inspection, maintenance, and use of all hazardous, pressurized, marine safety, firefighting, or regulated products after transfer of risk.

8. Delivery fees

Delivery, handling, or transportation charges may apply depending on product size, weight, quantity, distance, labor requirements, accessibility, waiting time, or special handling requirements.

9. Return authorization

All returns require prior written authorization from Makrine LLC. Buyer must contact Makrine LLC within thirty (30) days of receipt, provide order details, describe the issue, and follow all return instructions provided.

Approved returns or cancellations may be subject to restocking fees, inspection fees, return freight charges, storage charges, administrative costs, or deductions for damaged, used, installed, altered, certified, missing, or non-resalable products. Partial credit may be issued based on product condition. Refund timing may vary depending on inspection and payment processing.

Makrine LLC reserves the right to reject returns or cancellations involving special-order products, imported reserved inventory, hazardous materials, or products not in resalable condition.

Payment Policy

1. General Payment Terms

Unless otherwise agreed in writing, new customers or customers without approved credit terms may be required to pay a 50% non-refundable deposit before order processing. Makrine LLC reserves the right to require full or partial prepayment for international shipments, customized orders, special-order products, or high-value shipments.

2. Accepted Payment Methods

Makrine LLC accepts ACH payments and wire transfers. ACH payment is the preferred payment method.

3. Late Payments

Past due balances may incur a late charge of 1.5% per month or the maximum amount permitted by law, whichever is lower. Buyer shall also be responsible for reasonable collection costs, including attorney's fees.

4. Payment Inquiries

For payment or billing inquiries, please contact invoice@makrine.com. Makrine LLC reserves the right to require prepayment for any order.

5. Taxes, Duties, Freight, and Additional Charges

Buyer shall be responsible for all applicable taxes, duties, tariffs, customs charges, port charges, government fees, freight charges, hazardous material charges, delivery charges, and other costs related to the purchase, shipment, delivery, importation, exportation, or use of the products unless otherwise agreed in writing by Makrine LLC.

Warranty Disclaimer

- Except as expressly confirmed in writing by Makrine LLC, all products are sold “as is” without warranties of any kind, express or implied, including warranties of merchantability, fitness for a particular purpose, or suitability for Buyer’s intended use.
- Any manufacturer warranty, if applicable, shall be limited to the warranty provided by the original manufacturer.
- Makrine LLC shall not be responsible for warranty claims arising from improper installation, misuse, mishandling, improper storage, improper maintenance, unauthorized modification, expired certification, improper transportation, or failure to follow applicable instructions, regulations, or industry standards.

Limitation of Liability

- Makrine LLC’s total liability arising from any quotation, order, product, delivery, service, delay, return, or claim shall not exceed the purchase price actually paid for the specific products giving rise to the claim.
- Under no circumstances shall Makrine LLC be liable for any indirect, incidental, consequential, special, punitive, or commercial damages, including but not limited to loss of profits, vessel downtime, port delays, cargo delays, demurrage, labor costs, inspection costs, re-certification costs, operational interruption, or third-party claims.
- Buyer assumes all responsibility for the proper handling, installation, inspection, maintenance, storage, transportation, certification, resale, and use of all marine safety, firefighting, pressurized, hazardous, or regulated products after delivery or transfer of possession.
- Makrine LLC makes no guarantee that any product will satisfy Buyer’s specific operational, regulatory, inspection, certification, or project requirements unless expressly confirmed in writing.
- Makrine LLC shall not be liable for delays, shortages, or failures caused by manufacturers, suppliers, carriers, freight forwarders, customs authorities, ports, government agencies, or other third parties.
- These limitations shall apply to the fullest extent permitted by applicable law regardless of the legal theory asserted.

Governing Law and Jurisdiction

- These Terms and Conditions and all transactions with Makrine LLC shall be governed by the laws of the State of Texas, without regard to its conflict of law principles.
- Any dispute arising out of or relating to any quotation, order, invoice, delivery, product, service, payment, or transaction with Makrine LLC shall be subject to the exclusive jurisdiction of the state or federal courts located in Harris County, Texas, USA.